

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

BED BATH & BEYOND INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND
OOCL (EUROPE) LIMITED, *Respondents*.

DOCKET NO. 23-02

Served: March 21, 2024

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

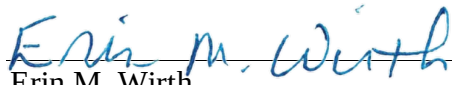
BRIEFING SCHEDULE

On March 15, 2023, the parties filed a joint status update and proposed briefing schedule ("JSR"). This proceeding involves a significant claim for reparations of over 30 million and the parties describe the scope of discovery as "enormous" as over "three (3) terabytes of data, or the equivalent of approximately 200-300 million pages of documents" have been reviewed in discovery and over a million pages have been produced by the parties. JSR at 2-3. "The Parties both substantially completed document production prior to the deadline in the Second Revised Scheduling Order." JSR at 2. The Parties anticipate over twenty fact witness depositions and the need for expert witnesses. JSR at 4.

The parties propose a briefing schedule, as required. The briefing schedule will allow additional time for the parties to complete fact and expert discovery. At this point, document production should be completed, privilege logs exchanged, and the parties should be conducting depositions. The parties did not request modified deadlines for discovery, but indicate they may do so. Any requests to modify the discovery deadlines should conclude all discovery by September 10, 2024, and should allow the parties to meet these briefing deadlines. The parties should expect to meet the briefing deadlines they propose without any further extensions.

The parties are hereby **ORDERED** to follow this briefing schedule and the briefing requirements in the June 8, 2023, scheduling order:

Oct. 11, 2024	Complainant's Opening Brief, Proposed Findings of Fact, and Appendix.
Nov. 11, 2024	Respondents' Opposition Brief, Proposed Findings of Fact, Appendix, and Responses to Complainant's Proposed Findings of Fact.
Nov. 26, 2024	Complainant's Reply to Respondents' Brief and Proposed Findings of Fact.


Erin M. Wirth
Chief Administrative Law Judge